

		The court continues the 7/27/26 CMC to 9/8/26 at 8:45am in Dept. C24. Post shall give notice.
304	<i>Jinx vs. Family Orthodontics & Oral Surgery</i>	The Motion to Vacate or Continue the Trial Date, filed on 5/11/26 by Defendants Dean Azzeah, D.D.S. and Dean Azzeah D.D.S., Inc. dba Family Orthodontics & Oral Surgery (Defendants), is GRANTED as to the request for a continuance. The Motion shows good cause for a trial continuance, as Defendants have presented evidence demonstrating that their discovery efforts have been substantially impeded by the conduct of Plaintiff here. (Foxwell Decl., ¶¶ 7-21.) Plaintiff disputes that characterization but does not object to the proposed continuance. Under these circumstances, the requested continuance is warranted. The Court therefore continues the 1/19/27 trial date to 8/30/27 at 9:30am, with all related deadlines to be continued accordingly. Defendants shall give notice.
305	<i>Baptiste vs. County of Orange</i>	The court withholds a tentative ruling.
306	<i>Osorio vs. Bautista</i>	The Motion to be Relieved as Counsel, filed on 4/7/26 by Attorney Derek Herrera of Avrek Law Firm, as to the representation of Plaintiff Ignacio Artemio Hernandez Osorio, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check boxes 3(b), 5(a), and 9(a), and fill in for Boxes 6 and 7].

		The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. The 7/27/26 Case Management Conference is vacated and an OSC re: dismissal for failure to serve is set for 10/19/26 at 8:45am in Dept. C24. That new date should be included in the revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. Moving counsel shall give notice.
307	<i>Lucas vs. Mercedes-Benz USA, LLC</i>	Defendant Mercedes-Benz USA, LLC's ("Defendant") Motion to Compel Arbitration ("Motion") is DENIED without prejudice. Defendant produced a purported lease agreement which plaintiff Adam J. Lucas ("Plaintiff") entered into with non-party Mercedes-Benz of Palm Springs for lease of a motor vehicle. (White Decl. ¶ 2, Ex. 1.) Plaintiff in the opposition contested the lease by pointing out the lease was not properly authenticated. "Authentication of a writing is required before it may be received in evidence." (Evid. Code § 1401.) Defendant cites to <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, for the premise that for purposes of a motion to compel arbitration it is not necessary to follow normal procedures for document authentication. (<i>Id.</i>, at 218.) However, <i>Condee</i> does not discuss the evidentiary burdens of the parties where the existence or authenticity of a contract is contested by the parties; <i>Condee</i> only addresses the initial burden on the motion. Once the lease/arbitration agreement is contested, such as here, Defendant is required to establish by a preponderance of the